

6. **Effect of the Fines and Recoveries Act upon trusts to preserve contingent remainders.** — The law upon the duties of trustees to preserve contingent remainders has recently undergone great alteration.

By the 15th section of the Fines and Recoveries Act (*b*) it is declared, that every tenant in tail, whether *in possession, remainder, contingency, or otherwise*, shall have power to dispose of the lands entailed for an estate in fee simple absolute; but by the 40th and two following sections, the disposition must be by *deed inrolled*, and must be made with the *consent of the protector of the settlement*.

7. **Operation of the old law.** — Under the old law the key of the settlement was in the hands * of the [*382] person who was the owner of the freehold in possession; but now, by the 32d section of the Act, any settlor entailing lands may *appoint* one or more persons *in esse*, not exceeding three and not being *aliens*, to be protector or protectors of the settlement during the period therein specified, and may perpetuate the protectorship by means of a power of appointment of new protectors (*a*). If the settlor has not taken advantage of this permission, then, by the 22d section, if there be subsisting under the settlement any estate for years determinable on the dropping of a life or lives, or any greater estate (not being an estate for years) prior to the estate tail, the owner of such prior estate, or of the first of such prior estates if more than one, or *the person who would have been owner had he not disposed of his interest*, is constituted the protector of the settlement. But, by the 27th section, no dowress, *bare trustee*, heir, executor, or administrator shall be protector. However, by the 31st section, it is enacted, that, “where, *under a settlement made before the passing of the Act*, the person who under the old law should have made the tenant to the *præcipe*, shall be a *bare trustee*, such trustee during the continuance of the estate

(*b*) 3 & 4 Will. 4, c. 74.

[(*a*) Where a testatrix appointed three persons protectors, and made provisions for the appointment of other persons to be protectors in case they should die, and the protectors

all died but no new protectors were appointed in their place, it was held by V. C. Malins that the tenant for life was the protector. *Clarke v. Chamberlin*, 16 Ch. D. 176.]